

**IN THE SUPREME COURT OF PAKISTAN**  
(Appellate Jurisdiction)

**PRESENT:**  
JUSTICE NAEEM AKHTAR AFGHAN  
JUSTICE MALIK SHAHZAD KHAN  
JUSTICE ISHTIAQ IBRAHIM

**JAIL PETITION NO.202 OF 2025**

*(On appeal against the judgment dated 14.03.2023, passed by the Lahore High Court, Lahore in Criminal Appeal No.45340-J of 2019 and Murder Reference No.133 of 2019)*

Javed Ali

...Petitioner (s)

**Versus**

The State

...Respondent(s)

|                        |                                |
|------------------------|--------------------------------|
| For the Petitioner(s): | Malik Mateeullah, ASC          |
| For the State:         | Mr. Irfan Zia, Addl.PG, Punjab |
| For the Complainant:   | Mr. M.Anwar-ul-Haq, ASC        |
| Date of hearing:       | 19.12.2025                     |

**JUDGMENT**

**ISHTIAQ IBRAHIM, J.-** This Jail Petition has been filed by Javed Ali (**‘the petitioner-convict’**) challenging his conviction and sentence as recorded by the Lahore High Court, Lahore (**‘the High Court’**) through judgment dated 14.03.2023 (**‘impugned judgment’**). The petition is barred by 715 days. However, keeping in view that the petitioner-convict has been awarded the capital sentence by the two Courts below, and considering the reasons put forth in the application seeking condonation of delay, the said application is allowed and the delay in filing the Jail Petition is hereby condoned.

2. The petitioner-convict was charged with the murder of Talha Amjad, a young boy aged about 17 years (**‘the deceased’**), in case FIR No.267/2017 dated 04.07.2017, registered under section 302 of the Pakistan Penal Code, 1860 (**‘PPC’**) at Police Station Saddar Shahkot, District Nankana Sahib. He was tried by the learned Additional Sessions

Judge, Shahkot (**'Trial Court'**) and upon conclusion of the trial, the Trial Court vide judgment dated 30.04.2019 convicted the petitioner-convict under section 302(b) PPC and sentenced him to death as *ta'zir*. He was further directed to pay compensation in the sum of Rs.200,000/- under section 544-A of the Code of Criminal Procedure, 1898 (**'the Code'**), and in default thereof, to undergo six months simple imprisonment.

3. The learned High Court, through the impugned judgment, dismissed Criminal Appeal No.45340-J of 2019 filed by the petitioner-convict, thereby maintaining his conviction and sentence. Consequently, Murder Reference No.133 of 2019, submitted by the Trial Court for confirmation or otherwise of the death sentence, was answered in the affirmative, and the death sentence awarded to the petitioner-convict was confirmed.

4. The prosecution case, as unfolded in the First Information Report ("FIR") registered on the basis of the written complaint (Exh.PA) lodged by Muhammad Amjad (PW.1), is that on 04.07.2017 Talha Amjad (the deceased), son of the complainant, was returning home from the fields after collecting fodder on a donkey cart, while Muhammad Asif (PW.2) was accompanying him on foot alongside the donkey cart. At about 07:45 a.m., when the deceased reached near the land of Feroze Deena Fauji, the petitioner-convict Muhammad Javed alias Jaido, who was present on the road near his motorcycle and was armed with a pistol, raised a *lalkara* and opened fire at the deceased. As a result, the deceased sustained firearm injuries on his left shoulder, the lower part of the elbow of his right arm, and the right flank, whereupon he fell down from the donkey cart. The complainant along with Muhammad Asif (PW.2) and Umar Saeed, when stepped forward to apprehend the petitioner, he threatened them with dire consequences, warning that anyone who came forward would meet the same fate as the deceased. After the commission of the offence, the petitioner-convict fled from the spot on his motorcycle. The complainant and Umar Saeed attempted to shift the injured deceased on a motorcycle; however, in the meantime, Rescue-1122 arrived at the scene and shifted the deceased to Tehsil Headquarter Hospital, Shahkot, where he succumbed to his injuries. The occurrence was witnessed by the complainant (PW.1), Muhammad Asif (PW.2), and Umar Saeed. The motive behind the occurrence was that the

petitioner-convict allegedly used to coerce the deceased into immoral acts, to which the deceased had objected and had reported the matter to his father and due to the said grudge, he committed murder of the deceased.

5. Upon the arrest of the petitioner-convict and completion of the investigation, a report under section 173 of the Code was submitted against him before the Trial Court. After facing a full-dressed trial, the petitioner-convict was convicted under section 302(b) PPC and sentenced to death as Ta'azir. The High Court, while dismissing his appeal, maintained his conviction and sentence. Hence, the present petition for leave to appeal.

6. We have heard the learned counsel for the parties as well as the learned Additional Prosecutor General, Punjab, and with their able assistance have perused the record, the evidence, and the judgments passed by the Courts below.

7. The complainant, Muhammad Amjad (PW.1), father and Muhammad Asif (PW.2), uncle of Talha Amjad (the deceased), have furnished ocular account of the occurrence. The complainant in his report (Exh.PA) as well as in his statement recorded before the Court, has satisfactorily explained the purpose of his presence at the spot. According to his deposition, he is a cultivator by profession. After passing matriculation examination, the deceased used to assist him in cultivating the land. On the fateful day, i.e., 04.07.2017, in the morning hours, the deceased left home along with Muhammad Asif (PW.2) for the fields to bring green fodder; that he (complainant) along with Umar Saeed, was also proceeding towards the fields on a motorcycle and at about 07:45 hours when reached the place of occurrence, they saw the petitioner-convict standing on the road alongside a motorcycle, who after raising lalkara opened fire at the deceased, as a result, the deceased got hit on various parts of his body and fell to the ground from the donkey cart.

8. Similarly, eyewitness Muhammad Asif (PW.2) has also adequately explained his presence with the deceased at the time of the occurrence. According to his statement, on 04.07.2017 in the morning, he and the deceased went to the fields to collect fodder. They loaded green fodder

into a donkey cart, and thereafter started their return journey towards their village along a *kacha* path leading from the fields to their house. The deceased was riding on the donkey cart while he was walking alongside the cart. At about 07:45 hours, when they reached near the land of Feroze Deen alias Fauji, the petitioner-convict, armed with a pistol standing near a motorcycle, raised a *lalkara* and opened fire at the deceased, as a result of which the deceased sustained firearm injuries and fell down from the donkey cart.

9. Upon scrutinizing the testimony of the above-named eyewitnesses, we find that they are consistent with each other on all material particulars of the occurrence, including the day, date, time, and place of the incident, as well as the subsequent events occurred after the occurrence, such as the manner in which the deceased was shifted in injured condition from the spot, the arrival of Rescue-1122, and the shifting of the deceased to the hospital. Both the eyewitnesses were subjected to lengthy cross-examination; however, nothing beneficial to the defence or adverse to the prosecution could be elicited from them. The defence also failed to create any dent in their testimony so as to render their presence at the spot doubtful or to termed them as interested or procured witnesses. The occurrence took place in broad daylight, and the petitioner-convict, being a co-villager of the eyewitnesses, was well known to them; therefore, the question of mistaken identity does not arise. The incident was reported with promptitude, which rules out the possibility of consultation or deliberation on the part of the complainant. It is important to mention that complainant is the father of the deceased and PW Muhammad Asif is his uncle and both have directly and singularly charged him for murder of the deceased with firearm. In view of the above, the finding of the High Court that the possibility of substitution of the petitioner-convict by the eyewitnesses with an innocent person, is extremely remote and beyond the realm of probability, are in consonance with the consistent view of this Court in *Aman Ullah v. The State* (2023 SCMR 723), *Imran Mehmood v. The State* (2023 SCMR 795), *Asfandiyar v. The State and others* (2021 SCMR 2009), and *Muhammad Abbas and another v. The State* (2023 SCMR 487), wherein it has been held by this Court that related witnesses, who have personally witnessed the crime and lost

their close relation in the incident, are not likely to falsely implicate an innocent person while allowing the actual culprit to go scot-free.

10. The findings recorded by the High Court regarding the medical evidence and the positive report of the Punjab Forensic Science Agency (PFSA), establishing that the two crime empties of .30 bore matched with the .30 bore pistol recovered at the instance of the petitioner-convict, are based upon a correct application of the settled principles of law. The said forensic and medical evidence lends strong corroboration to the ocular account furnished by the prosecution witnesses. Likewise, the conclusion drawn by the High Court with respect to the motive is well reasoned and in consonance with the realities of our social environment. The motive attributed to the petitioner-convict was of such a nature that it could not ordinarily be disclosed by the deceased to persons at large and, therefore, was shared only by him with his father/the complainant. The mere fact that no FIR or complaint was lodged by the deceased or his father prior to the occurrence in respect of the said motive does not, in the given circumstances, cast any doubt on the prosecution case. It is a matter of common human conduct that incidents or demands which directly intrude upon the dignity, honour, and social standing of a person or his family are often not reported to the police. Apart from above, no actual incident of sodomy had yet taken place; rather, the allegation was of persistent coercion and pressure exerted by the petitioner-convict upon the deceased. In such circumstances, the non-reporting of the matter to the police appears to be entirely plausible to a prudent mind, particularly in the context of prevailing social norms, where a father would naturally be reluctant to expose his son to lifelong stigma or social disgrace. Therefore, the motive as set up by the prosecution cannot be termed as artificial, concocted, or improbable.

11. Upon a careful evaluation of the evidence available on record, we are persuaded to hold that both the Courts below, after properly appreciating and appraising the prosecution evidence, have arrived at a correct conclusion in holding the petitioner-convict guilty of the murder of Talha Amjad deceased. The conviction of the petitioner-convict, therefore, does not call for interference by this Court. However, the capital sentence awarded to the petitioner-convict requires serious and

independent consideration in view of the circumstances discussed hereinafter.

12. According to Form-B issued by the National Database and Registration Authority (NADRA), which, though not formally exhibited by the defence, forms part of the record, the date of birth of the petitioner-convict is recorded as 25.10.1998. The date of occurrence is 04.07.2017. Consequently, on the day of the occurrence, the petitioner-convict was approximately 18 years, 6 months, and 10 days old. While it is true that on the date of the occurrence the petitioner-convict did not fall within the statutory definition of a “juvenile,” it cannot be opposed that he was still of a tender age/teenager and had only recently crossed the threshold of majority. Although this aspect was not pressed by the defence before the two Courts below, however, this Court, while exercising its jurisdiction in the criminal administration of justice, cannot remain oblivious to factors having a direct bearing on the quantum of sentence, particularly in a case involving the extreme penalty of death. Sentencing is not a mechanical exercise; rather, it requires a judicious balancing of aggravating and mitigating circumstances. The youth of an offender, even if he is not a juvenile in the strict legal sense, is a relevant mitigating factor which must be accorded due weight while determining the appropriate sentence. It is a settled principle of law that the death penalty is to be awarded only in the “rarest of the rare” cases, where the circumstances of the offence and the offender leave no room for leniency. In the present case, the petitioner-convict’s age at the time of the occurrence, though insufficient to absolve him of criminal liability, is nonetheless significant for the purposes of sentencing. In such circumstances, the imposition of the ultimate penalty would not be in consonance with the principles of proportionality and individualized sentencing. Guidance in this regard may be derived from the judgments of this Court rendered in *Sohail Iqbal v. The State* (1993 SCMR 2377), *M. Afzal v. The State* (1999 SCMR 2851), and *Ghulam Sarwar v. Sajid Ullah* (2005 SCMR 1054).

13. In *Sohail Iqbal*’s case (*supra*), the age of the accused-convict at the time of the occurrence was reflected in the record as about 21 years and 8 months. However, the Trial Court recorded his age in his statements under section 342 Cr.P.C. as 16 years and under section 340(2), Cr.P.C.

as 16/17 years. In the peculiar circumstances of the case, this Court substituted the death sentence of the accused-convict with imprisonment for life, primarily on account of the young age of the accused-convict at the time of commission of the offence. Similarly, in *M. Afzal's* case, the accused-convict was 18 years of age at the time of the occurrence, and owing to his tender age, his sentence of death was commuted to imprisonment for life by this Court. Likewise, in *Ghulam Sarwar's* case, the accused was between 19 and 20 years of age at the time of the occurrence, and his young age was treated as a mitigating circumstance, persuading this Court to commute the death sentence to imprisonment for life.

14. In view of the above, this petition is converted into an appeal and is partly allowed inasmuch as the conviction of the appellant-convict under section 302(b) PPC is maintained; however, his sentence of death is commuted to rigorous imprisonment for life. The amount of compensation imposed upon the appellant-convict, as well as the sentence to be undergone in default thereof, shall remain intact. The benefit of section 382-B of the Code is extended to the appellant-convict.

Judge

Judge

Judge

Announced in open Court at Islamabad on \_\_\_\_\_

Judge

Approved for reporting.  
M.Siraj Afridi PS

